

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

SUMMONS

EBONIE POWELL and ANDREA EALY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. VEGA, P.O. KO, and P.O. BERNAN,

Defendants.

Plaintiff designates New
York County as the place of
trial.

The basis of venue is:
Place of Occurrence

Plaintiff resides at:
45 Rutgers Street, 10H
New York, NY, 10002

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 12, 2024



Nicole S. Weiser, Esq.
WEISER & ASSOCIATES, LLP
Attorneys for Plaintiffs:
EBONIE POWELL and ANDREA EALY
150 East 58th Street, 27th Floor
New York, NY 10155
(212) 213-3111
nicole@weiserlaw.com

TO:

THE COMPTROLLER'S OFFICE

100 Church Street, 4th Floor

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EBONIE POWELL and ANDREA EALY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. VEGA, P.O. KO, and P.O. BERNAN,

Defendants.

**VERIFIED
COMPLAINT**

Index No.:

Plaintiffs, **EBONIE POWELL** and **ANDREA EALY**, by their attorneys, **WEISER & ASSOCIATES, LLP**, complaining of the Defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. VEGA, P.O. KO, and P.O. BERNAN**, respectfully allege the following upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
EBONIE POWELL:**

1. That at all times herein mentioned, Plaintiff, **EBONIE POWELL**, was and remains a resident of the County of New York, City and State of New York.
2. That at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, was and remains a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, operates, controls, and maintains Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**.

4. That at all times herein mentioned, Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, was charged with the safety and protection of all citizens of the City of New York.

5. That Plaintiff, **EBONIE POWELL**, has filed a Notice of Claim against Defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. VEGA, P.O. KO, and P.O. BERNAN**, on or about June 16, 2023.

6. That the aforementioned Notice of Claim was filed within ninety (90) days of the accrual of Plaintiffs' cause of action.

7. That all conditions precedent to initiating suit have been met, including but not limited to the completion of a statutory hearing on December 11, 2023, pursuant to the General Municipal Law of the State of New York.

8. That more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and that Defendants have not made any adjustments thereof.

9. That Plaintiff, **EBONIE POWELL**, has met each and every obligation on her part prior to the initiation of this action.

10. That on March 26, 2023, at approximately 7:52 P.M., police officers of the New York City Police Department assaulted, attacked, battered, and wrongfully arrested Plaintiff, **EBONIE POWELL**.

11. That the police officers involved were from the 17th Precinct and included, but not limited to, Officers **VEGA, KO, and BERNAN**.

12. That Plaintiff, **EBONIE POWELL**, was subsequently falsely arrested and falsely imprisoned by **P.O. VEGA, P.O. KO, and P.O. BERNAN**, who were employed by Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK POLICE DEPARTMENT**.

13. That, upon information and belief, Plaintiff, **EBONIE POWELL**, was forcibly removed and incarcerated against her will, despite steadfastly maintaining her innocence.

14. That, as a result of the aforementioned occurrence, Plaintiff, **EBONIE POWELL**, sustained severe and grievous personal injuries.

15. That the injuries sustained by Plaintiff, **EBONIE POWELL**, were caused by the negligent assault, battery, arrest, and false imprisonment caused to her by officers employed by Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to **P.O. VEGA, P.O. KO, and P.O. BERNAN**.

16. That the injuries sustained by Plaintiff, **EBONIE POWELL**, were caused without any negligence on her part contributing thereto.

17. That Plaintiff, **EBONIE POWELL**, sustained severe and grievous bodily injuries, pain, suffering, loss of enjoyment in life, medical and hospital expenses, and will, upon information and belief, continue to suffer such injuries, disabilities, and expenses substantially into the future.

18. That, as a result of the foregoing, Plaintiff, **EBONIE POWELL**, has been damaged in the maximum sum permitted by law and the amount of damages she sustained exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, EBONIE POWELL:**

19. Plaintiffs repeat, reiterate, and reallege the same allegations contained in paragraphs “1” through “18” of this complaint with the same force and effect as if fully set forth herein.

20. That on March 26, 2023, Plaintiff, **EBONIE POWELL**, while conducting herself in a peaceful and reasonable manner, she was caused to be falsely arrested by agents, servants, and/or employees of Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, which is operated and controlled by Defendant, **THE CITY OF NEW YORK**.

21. That, upon information and belief, following the aforementioned arrest, Plaintiff, **EBONIE POWELL**, was not read her rights and was forcibly removed against her will.

22. That following the aforementioned arrest, Plaintiff, **EBONIE POWELL**, was incarcerated against her will, despite steadfastly maintaining her innocence.

23. That, as a result of the actions of the agents, servants, and/or employees of Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**, Plaintiff, **EBONIE POWELL**, was rendered sick, sore, lame, and disabled, has required medical treatment for the injuries she sustained, and has, upon information and belief, sustained severe emotional and psychological injuries, all of which she has been informed are of a permanent, progressive, disabling, and deteriorating nature.

24. That Plaintiff, **EBONIE POWELL**, incurred hospital and medical expenses, and has been deprived of attending her usual duties and vocations as a result of the actions of the agents, servants, and/or employees of Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK**.

25. That, as a result of the subject false imprisonment, Plaintiff, **EBONIE POWELL**, has sustained damages in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts herein.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, EBONIE POWELL:**

26. Plaintiff repeats, reiterates, and realleges the same allegations contained in paragraphs "19" to "25" of this complaint with the same force and effect as if fully set forth herein.

27. That on March 26, 2023, Plaintiff, **EBONIE POWELL**, was assaulted and severely battered by police officers employed by Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**.

28. That the actions of Defendant through its agents, servants, and/or employees in assaulting Plaintiff, **EBONIE POWELL**, were wrongful, unjustified, malicious, and calculated to cause severe harm, pain, suffering, and disability.

29. That as a result of the unlawful assault and battery, Plaintiff, **EBONIE POWELL**, was caused to suffer severe and grievous bodily injuries, pain, suffering, loss of enjoyment in life, medical and hospital expenses, and will, upon information and belief, continue to suffer such injuries, disabilities, and expenses substantially into the future.

30. That as a result of the foregoing, Plaintiff, **EBONIE POWELL**, has been damaged in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, EBONIE POWELL:**

31. Plaintiff repeats, reiterates, and realleges the same allegations contained in paragraphs "26" to "30" of this complaint with the same force and effect as if fully set forth herein.

32. That, in addition to being assaulted, battered, and falsely arrested, Plaintiff, **EBONIE POWELL**, was unlawfully and wrongly detained, interrogated, handcuffed, threatened, and falsely imprisoned, which deprived her of her liberty and freedom.

33. That as a result of the unlawful detention and false imprisonment, Plaintiff, **EBONIE POWELL**, was caused to suffer great humiliation, pain, and mental anguish, all of which she has been informed are of a permanent, protracted, and lasting nature, which damaged her in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
EBONIE POWELL:

34. Plaintiff repeats, reiterates, and realleges the same allegations contained in paragraphs "31" to "33" of this complaint with the same force and effect as if fully set forth herein.

35. That, in addition to being assaulted, battered, falsely arrested, and falsely imprisoned, Plaintiff, **EBONIE POWELL**, claims that she was deprived of her civil rights and that the police officers involved, including but not limited to **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**, violated her civil rights pursuant to 42 U.S. Code Section 1983.

36. That as a result of her wrongful detention and false imprisonment, Plaintiff, **EBONIE POWELL**, was caused to suffer great humiliation, pain, and mental anguish, all of which she has been informed are of a permanent, protracted, and lasting nature, which has damaged her in

the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
ANDREA EALY:

37. Plaintiffs repeat, reiterate, and reallege the same allegations contained in paragraphs “1” through “36” of this complaint with the same force and effect as if fully set forth herein.

38. That at all times herein mentioned, Plaintiff, **ANDREA EALY**, was and remains a resident of New York County, City and State of New York.

39. That Plaintiff, **ANDREA EALY**, has filed a Notice of Claim against Defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. VEGA, P.O. KO, and P.O. BERNAN**, on or about June 16, 2023.

40. That the aforementioned Notice of Claim was filed within ninety (90) days of the accrual of Plaintiffs’ cause of action.

41. That all conditions precedent to initiating suit have been met, including but not limited to the completion of a statutory hearing on December 5, 2023, pursuant to the General Municipal Law of the State of New York.

42. That more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and that Defendants have not made any adjustments thereof.

43. That Plaintiff, **ANDREA EALY**, has met each and every obligation on her part prior to the initiation of this action.

44. That on March 26, 2023, at approximately 7:52 P.M., Plaintiff, **ANDREA EALY**, was conducting herself in a lawful, peaceful, and reasonable manner when she was negligently and

recklessly assaulted, battered, attacked, and arrested by agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to **P.O. VEGA, P.O. KO, and P.O. BERNAN**.

45. That on March 26, 2023, Plaintiff, **ANDREA EALY**, was falsely arrested and imprisoned by Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, through the actions of its agents, servants, and/or employees, including but not limited to Defendants, **P.O. VEGA, P.O. KO, and P.O. BERNAN**.

46. That, as a result of the subject occurrence, Plaintiff, **ANDREA EALY**, sustained severe and grievous personal injuries.

47. That the injuries sustained by Plaintiff, **ANDREA EALY**, were caused by the negligence, assault, battery, arrest, and false imprisonment imposed on her by the agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to Defendants, **P.O. VEGA, P.O. KO, and P.O. BERNAN**.

48. That the injuries sustained by Plaintiff, **ANDREA EALY**, were incurred without any negligence on her part contributing thereto.

49. That Plaintiff, **ANDREA EALY**, sustained severe and grievous bodily injuries, pain, suffering, loss of enjoyment of life, medical and hospital expenses, and will, upon information and belief, continue to suffer such injuries, disabilities, and expenses substantially into the future.

50. That, as a result of the subject occurrence, Plaintiff, **ANDREA EALY**, has been damaged in the maximum sum permitted by law, and that the amount of damages sustained exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, ANDREA EALY:

51. Plaintiff repeats, reiterates and realleges the same allegations as contained in paragraphs "37" through "50" of this complaint with the same force and effect as if fully set forth herein.

52. That on March 26, 2023, while Plaintiff, **ANDREA EALY**, was conducting herself in a peaceful and reasonable manner, she was falsely arrested by agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to Defendants, **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**.

53. That, upon information and belief, Plaintiff, **ANDREA EALY**, was not read her rights and was forcibly removed against her will.

54. That following the aforementioned arrest, Plaintiff, **ANDREA EALY**, was wrongfully incarcerated against her will, despite steadfastly maintaining her innocence.

55. That, as a result of the actions of the agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to Defendants, **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**., Plaintiff, **ANDREA EALY**, was rendered sick, sore, lame, and disabled, has required medical treatment for the injuries she sustained, and has, upon information and belief, sustained severe emotional and psychological injuries, all of which she has been informed are of a permanent, progressive, disabling, and deteriorating nature.

56. That Plaintiff, **ANDREA EALY**, incurred hospital and medical expenses, and has been deprived of attending her usual duties and vocations as a result of the actions of the agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to Defendants, **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**.

57. That, as a result of the subject false imprisonment, Plaintiff, **ANDREA EALY**, has sustained damages in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts herein

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, ANDREA EALY:

58. Plaintiff repeats, reiterates and realleges the same allegations as contained in paragraphs “51” through “57” of this complaint with the same force and effect as if fully set forth herein.

59. That on March 26, 2023, Plaintiff, **ANDREA EALY**, was assaulted and severely battered by agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to Defendants, **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**.

60. That the actions of Defendants through their agents, servants, and/or employees in assaulting Plaintiff, **ANDREA EALY**, were wrongful, unjustified, malicious, and calculated to cause severe harm, pain, suffering, and disability.

61. That as a result of the unlawful assault and battery, Plaintiff, **ANDREA EALY**, was caused to suffer severe and grievous bodily injuries, pain, suffering, loss of enjoyment in life,

medical and hospital expenses, and will, upon information and belief, continue to suffer such injuries, disabilities, and expenses substantially into the future.

62. That as a result of the foregoing, Plaintiff, **ANDREA EALY**, has been damaged in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, ANDREA EALY:**

63. Plaintiff repeats, reiterates and realleges the same allegations as contained in paragraphs "58" through "62" of this complaint with the same force and effect as if fully set forth herein.

64. That, in addition the assault, battery, and false arrest, Plaintiff, **ANDREA EALY**, was unlawfully and wrongly detained, interrogated, handcuffed, threatened, and falsely imprisoned, which deprived her of her liberty and freedom.

65. That as a result of the unlawful detention and false imprisonment, Plaintiff, **ANDREA EALY**, was caused to suffer great humiliation, pain, and mental anguish, all of which she has been informed are of a permanent, protracted, and lasting nature, which damaged her in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts who would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, ANDREA EALY:**

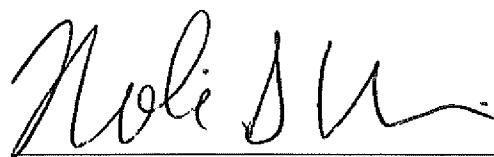
66. Plaintiff repeats, reiterates, and realleges the same allegations contained in paragraphs "63" to "65" of this complaint with the same force and effect as if fully set forth herein.

67. That, in addition to being assaulted, battered, falsely arrested, and falsely imprisoned, Plaintiff, **ANDREA EALY**, claims that she was deprived of her civil rights and that the police officers involved, including but not limited to **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**, violated her civil rights pursuant to 42 U.S. Code Section 1983.

68. That as a result of her wrongful detention and false imprisonment, Plaintiff, **ANDREA EALY**, was caused to suffer great humiliation, pain, and mental anguish, all of which she has been informed are of a permanent, protracted, and lasting nature, which has damaged her in the maximum sum permitted by law, and the amount of damages sustained exceeds the jurisdictional limits of all lower courts herein.

WHEREFORE, Plaintiffs, **EBONIE POWELL** and **ANDREA EALY**, demand judgement in their causes of action against Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**., in a sum that will fairly and adequately compensate them for the injuries they sustained as a result of the negligence, assault, battery, false arrest, and false imprisonment caused to them by the actions of agents, servants, and/or employees of Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to **P.O. VEGA**, **P.O. KO**, and **P.O. BERNAN**. Plaintiffs pray for relief in a sum that exceeds the jurisdiction of all lower courts, together with the costs and disbursements related to this action.

Dated: New York, New York
February 12, 2024



Nicole S. Weiser, Esq.
WEISER & ASSOCIATES, LLP

Attorneys for Plaintiffs:

EBONIE POWELL and ANDREA EALY

150 East 58th Street, 27th Floor

New York, NY 10155

(212) 213-3111

nicole@weiserlaw.com

TO:

THE COMPTROLLER'S OFFICE

100 Church Street, 4th Floor

New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

1 Police Plaza Path

New York, NY 10038

CLIENT VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW YORK ss:

Ebonie Powell, being duly sworn, says:

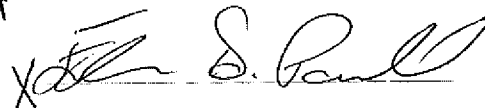
I am a Plaintiff in the action herein: I have read the annexed

Summons & Verified Complaint

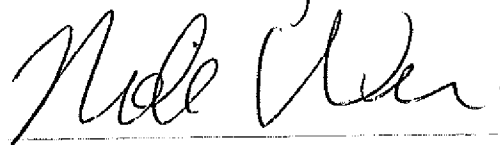
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: NEW YORK, NEW YORK

February 12, 2024



Subscribed and sworn to before me
this 12th day of February, 2024



NOTARY PUBLIC

NICOLE WEISER
Notary Public, State of New York
No. 02WE5078041
Qualified in New York County
Commission Expires July 25, 2027

CLIENT VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW YORK ss:

Andrea Ealy, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

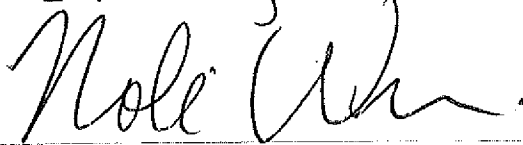
Summons & Verified Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: NEW YORK, NEW YORK
Feb. 12, 2024

x 

Subscribed and sworn to before me
this 12th day of February, 2024



NOTARY PUBLIC

NICOLE WEISER
Notary Public, State of New York
No. 02WE5078041
Qualified in New York County
Commission Expires July 25, 2027